

MODERN INDIAN HISTORY



MODULE - 31

**ADMINISTRATIVE STRUCTURE
UNDER CROWN RULE**

ADMINISTRATIVE SYSTEM UNDER BRITISH RULE

INTRODUCTION

EVOLUTION OF CONSTITUTIONAL DEVELOPMENT



1765-1858

UNDER THE COMPANY RULE

DUAL ADMINISTRATION OF 1765

REGULATING ACT OF 1773

PITTS INDIA ACT OF 1784

CHARTER ACT OF 1793

CHARTER ACT OF 1813

CHARTER ACT OF 1833

CHARTER ACT OF 1853

1858-1947



UNDER THE BRITISH CROWN

GOVERNMENT OF INDIA 1858

INDIAN COUNCIL ACT 1861

INDIAN COUNCIL ACT 1892

MORLEY-MINTO REFORM ACT 1909

MONTAGU- CHELMSFORD REFORMS 1919

GOVERNMENT OF INDIA ACT 1935

INDIAN INDEPENDENCE ACT 1947

ADMINISTRATIVE SYSTEM UNDER CROWN RULE

GOVERNMENT OF INDIA ACT - 1858

WHY THERE WAS NEED TO REGULATE BRITISH INDIA?



ENGLISH EAST INDIA COMPANY

Transfer of power

*Now the fate of Indians was directly
in the hand of British Crown*



BRITISH CROWN

- Growing resentment against the company reached its climax with the revolt of 1857
- Revolt of 1857 created fear in the minds of British government which convinced the British that administration of the India must be taken over by the Crown.

ADMINISTRATIVE SYSTEM UNDER CROWN RULE

GOVERNMENT OF INDIA ACT - 1858

ACT FOR THE GOOD GOVERNMENT OF INDIA

Abolished EIC.
Transferred the power of government, territories to British Crown

Changed the designation from Governor-General of India to Viceroy of India

Double Government was abolished by ending Board of control and Court of Directors

New office secretary of state for India

Viceroy was direct representation of British Crown

Complete authority and control over Indian Administration

Member of British cabinet responsible to Parliament and political head of India

15 member Council to assist, Council is advisory body



LORD STANLEY
(FIRST SECRETARY OF STATE FOR INDIA)

GOVERNMENT OF INDIA ACT - 1858

EVALUATION OF GOVERNMENT OF INDIA ACT - 1858

MEMBERS OF BRITISH PARLIAMENT



Answerable to

SECRETARY OF STATE FOR INDIA



Responsible to

GOVERNOR GENERAL/VICEROY

Complete
authority and
control over
Indian
Administration

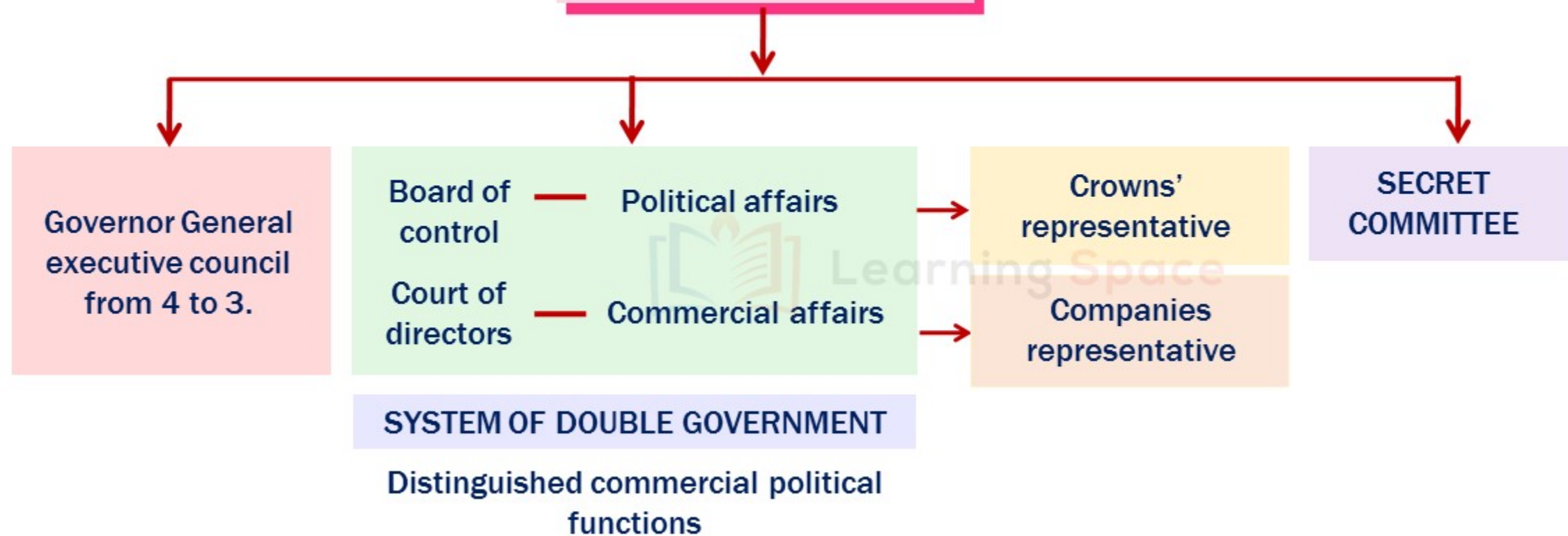
Viceroy was created to work as a diplomat while negotiating with princely states. However, it was provided that the both the offices to be held by same person. The objective of having same person occupy two offices was to avoid any conflict of interest.

- Established the control of British Parliament over Indian affairs via secretary of state.
- India was to be governed directly in the name of the crown
- Largely confined to the improvement of the administrative machinery of India in England.
- The administration of the country was now highly centralized.

PITT'S INDIA ACT OF 1784

2 FEATURES OF THE ACT

PITTS INDIA ACT - 1784



Now the fate of the Indians would be decided by company directly and British government indirectly.

INTRODUCTION

EVOLUTION OF CONSTITUTIONAL DEVELOPMENT



1765-1858

UNDER THE COMPANY RULE

DUAL ADMINISTRATION OF 1765

REGULATING ACT OF 1773

PITTS INDIA ACT OF 1784

CHARTER ACT OF 1793

CHARTER ACT of 1813

CHARTER ACT of 1833

CHARTER ACT of 1853

1858- 1947



UNDER THE BRITISH CROWN

GOVERNMENT OF INDIA 1858

INDIAN COUNCIL ACT 1861

INDIAN COUNCIL ACT 1892

MORLEY-MINTO REFORM ACT 1909

MONTAGU- CHELMSFORD REFORMS 1919

GOVERNMENT OF INDIA ACT 1935

INDIAN INDEPENDENCE ACT 1947

CHARTER ACT 1833

Charter Act 1833 is also known as St. Helena Act.

Trading privileges
renewed for next
20 years

CHARTER ACT - 1833



WILLIAM BENTINCK-
First governor-general of India
(1828-1835)

Governor General
of Bengal
became **Governor
General of India**

Governor-General
of India given
exclusive
legislative powers
for the entire
British India.

Deprived governor
of Bombay and
Madras of their
legislative powers.
**Final step towards
centralization**

Law commission
was formed for
Codifying,
consolidating and
improving the
Indian laws.

A law member
was added to
Governor
General's council

President of
Board of control
became
Minister for
Indian affairs.

CHARTER ACT OF 1853

1

FEATURES OF THE ACT

CHARTER ACT - 1853

Did not renew the charter for significant period

Charter said that Indian territories will remain under company in trust for the crown.

An act was needed to struck a balance between—Company authority over its territories and Crown intervention in company affairs.

Number of members of the Court of Directors was reduced to 18 from 24 and out of the 18, six were to be Crown nominees.

Separation of executive and legislature functions of governor general council

LEGISLATIVE
MAKES LAWS

EXECUTIVE
CARRIES OUT LAWS

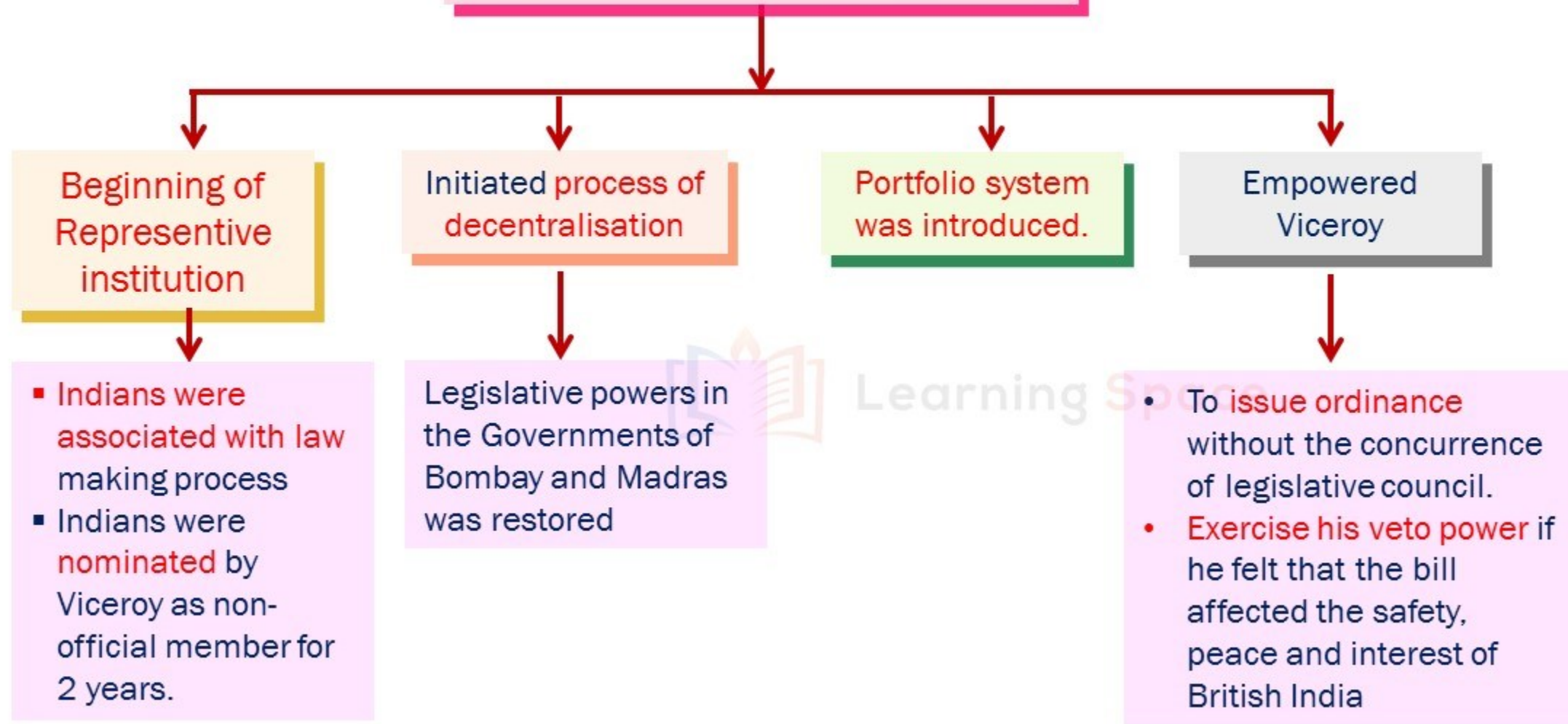
First time local representation was introduced in Indian legislative council

Four members were appointed by the local (provincial) governments of Madras, Bombay, Bengal and Agra

ADMINISTRATIVE SYSTEM UNDER CROWN RULE

GOVERNMENT OF INDIA ACT - 1861

INDIAN COUNCIL ACT - 1861



ADMINISTRATIVE SYSTEM UNDER CROWN RULE

GOVERNMENT OF INDIA ACT - 1861

REASONS FOR ENACTMENT OF 1861 ACT?

1858 act largely provided how India would be governed from England, however, it did not alter in any substantial way the system of government that prevailed in India.

After the of 1857 revolt , there was general perception in England that it would be difficult to secure the government in India without the cooperation of Indians in administration. So Indians were associated with law making process

There was growing demand that some representative element should be introduced in legislative council.

Centralized law making system was defective (to ensure uniformity of laws). It had only one representative each of the four provinces and it failed to make laws suiting to local conditions. Thus, there was need to allow the provinces to make laws for themselves.

Governor General in Council was overburdened due to cumbersome procedures and legislative burden leading to delay in enactments.

EVALUATION OF INDIAN COUNCIL ACT OF 1861

Nomination power of the Viceroy could be used to further strengthen their hold stronghold by **nominating Pro- British members.**

Legislative councils were merely talk shops with no power

- To criticize the administration
- Ask for some information
- Had no right to move some kind of vote of no confidence.

Further, there was no statutory specific provision for the nomination of Indians.

Further, the **ordinance making power** of the Governor General **allowed him to make laws on his own whim.**

Indian Councils Act 1861 failed to satisfy the aspirations of the people of India.

INTRODUCTION

EVOLUTION OF CONSTITUTIONAL DEVELOPMENT



1765-1858

UNDER THE COMPANY RULE

DUAL ADMINISTRATION OF 1765

REGULATING ACT OF 1773

PITTS INDIA ACT OF 1784

CHARTER ACT OF 1793

CHARTER ACT of 1813

CHARTER ACT of 1833

CHARTER ACT of 1853

1858- 1947



UNDER THE BRITISH CROWN

GOVERNMENT OF INDIA 1858

INDIAN COUNCIL ACT 1861

INDIAN COUNCIL ACT 1892

MORLEY-MINTO REFORM ACT 1909

MONTAGU- CHELMSFORD REFORMS 1919

GOVERNMENT OF INDIA ACT 1935

INDIAN INDEPENDENCE ACT 1947

INDIAN COUNCIL ACT - 1892

Reforms of the legislative council and adoption of the principle of election in place of nomination was one of the demand of INC.

INDIAN COUNCIL ACT - 1892

Increase in size of Legislative Council of both Central and Provincial

Official majority maintained is maintained in both. Thus making non-official vote ineffective.

Legislative Council deliberative power

- to discuss budget
- To ask questions

- Budget could not be voted upon nor any amendments could be introduced.
- Supplementary questions could not be asked.

Principle of representation was introduced. Limited and indirect provision of election

Nomination of non-official member on the recommendation of certain bodies universities, district board, municipalities, Zamindars and chambers of commerce

INDIAN COUNCIL ACT - 1892

The Act was an important milestone that led to the establishment of parliamentary government.

EVALUATION OF INDIAN COUNCIL ACT OF 1892

- Laid the foundation of **representative government** in India via only indirect elections
- Indirect election prevented direct contact between the public and representatives.
- But provided more Indians an **opportunity to share councils** at the highest levels

This act also served as a reason **behind rise of militant nationalism** in coming times.

Congress policy of petition, prayer and protest was seen as a weakness by the British Government.

Tilak "*political rights will have to be fought for. The moderates think that these can be won by persuasion. We think that they can only be obtained by strong Pressure...*"

INTRODUCTION

EVOLUTION OF CONSTITUTIONAL DEVELOPMENT



1765-1858

UNDER THE COMPANY RULE

DUAL ADMINISTRATION OF 1765

REGULATING ACT OF 1773

PITTS INDIA ACT OF 1784

CHARTER ACT OF 1793

CHARTER ACT of 1813

CHARTER ACT of 1833

CHARTER ACT of 1853

1858- 1947



UNDER THE BRITISH CROWN

GOVERNMENT OF INDIA 1858

INDIAN COUNCIL ACT 1861

INDIAN COUNCIL ACT 1892

MORLEY-MINTO REFORM ACT 1909

MONTAGU- CHELMSFORD REFORMS 1919

GOVERNMENT OF INDIA ACT 1935

INDIAN INDEPENDENCE ACT 1947

WE EXPRESS OUR SINCERE THANKS FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao

L. V. Krishna

Y. Deepthi

Y. Prema Manvi

S. Manoj Kumar

Mayank Chaudhary

D. Shruti Reddy

G. Ravi Babu

K. Victor Babu

D. Joji

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2

0 9 8 4 9 9 4 2 2 9 9